

Because fiduciary/confidential relationship is an essential element of fraud, it must be plead with specificity, see *Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 961. Here, the allegation that Plaintiff and Defendant were in a 5 + year business relationship is not sufficiently specific to establish a confidential relationship. Other allegations concerning trust and a duty to disclose are conclusory.

Concealment

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

CACI 1901 provides (4) distinct theories in which a Plaintiff can establish the first element of a concealment claim. The only theory applicable based on the operative pleading appears to be intentional failure to disclose facts in the context of a fiduciary or confidential relationship. As discussed, the pleading as constructed fails to sufficiently allege a confidential relationship. As a result, the demurrer is sustained.

Negligent Misrepresentation

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Negligent misrepresentation requires factual allegations establishing that defendant owed plaintiff a duty. (See *Friedman v. Merck & Co.* (2003) 107 Cal.App.4th 454, 477) As with fraud, negligent misrepresentation must be plead with specificity. (See *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792-793)

The pleading does not expressly allege a duty of care. The opposition appears to reference the existence of a fiduciary or confidential relationship as a basis for imposing a duty. As discussed, existence of confidential relationship has not been sufficiently pled.

To the extent leave to amend is granted, Plaintiff shall amend within 20 days' notice of this order.

Defendant William Jacques shall prepare the form of order within two weeks.

10. 23CV02027 Midland Credit Management, Inc v. Baxter, Elana

EVENT: Motion to Request a Judgment Nunc Pro Tunc

Motion to Request a Judgment Nunc Pro Tunc is GRANTED. The Court will sign the proposed order.

11. 23CV02903 Salvagno, Rachelle v. Tri Counties Bank

EVENT: Defendant's Renewed Motion to Compel Responses to Written Discovery and Monetary Sanctions

Defendants Renewed Motion to Compel Responses to Written Discovery and Monetary Sanctions is GRANTED. Plaintiff is ordered to provide verified responses without objection within 10 days' notice of this order.

Although the Court is mindful of the explanations from Plaintiff concerning the delays in responding, ultimately those explanations do not excuse a delay of this length, considering the requests were served in December 2025. As a result, Plaintiff is sanctioned in the amount of \$2,705.00, payable within 30 days.

Defendant shall prepare a form of order consistent with this ruling within two weeks.

12. 25CV01086 Robinson, Lorilee Meranda v. Transdev Services, Inc.

EVENT: Defendant's Motion for an Order Deeming Matters Admitted and for Monetary Sanctions

Defendant's Motion for an Order Deeming Matters Admitted and for Monetary Sanctions is GRANTED. It is well settled that unverified responses are tantamount to no responses at all. (*Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348) Plaintiff (but not Plaintiff's counsel) is sanctioned in the amount of \$1,428.00, payable within 30 days. The Court will sign the proposed order with this modification.

13. 25CV03376 Li, Yi v. AMCAL Chico LLC et al.

EVENT: Plaintiff's Motion for Leave to File a Second Amended Complaint

Plaintiff's Motion for Leave to File a Second Amended Complaint is DENIED. CCP 1005 requires a minimum of 16 court days' notice. An additional 2 court days are required when service is effectuated electronically as occurred here. (CCP 1010.6(a)(3)(B))